

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amanda Harouche	Team: Squad #16	CCRB Case #: 201507105	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 08/20/2015 11:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/20/2017	Precinct: 48		
Date/Time CV Reported Mon, 08/24/2015 12:20 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/24/2015 12:20 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Steven Mattioli	00000	900482	048 PCT
2. SGT Christophe Davis	1475	938323	048 PCT
3. DTS Brian Leo	5741	921881	048 PCT
4. POM Chad Poidomani	03022	947359	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Mateusz Sajduk	26186	946210	048 PCT
2. POM Vincent Figueroa	04456	951731	048 PCT
3. LT Edward Taveras	00000	921805	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Christophe Davis	Abuse: Sgt. Christopher Davis entered and searched § 87(2)(b) in the Bronx.	A . Unsubstantiated
B . SGT Christophe Davis	Discourtesy: Sgt. Christopher Davis spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . SGT Christophe Davis	Force: Sgt. Christopher Davis used physical force against § 87(2)(b)	C . Exonerated
D . DTS Brian Leo	Force: Det. Brian Leo used physical force against § 87(2)(b)	D . Exonerated
E . POM Chad Poidomani	Force: PO Chad Poidomani used physical force against § 87(2)(b)	E . Exonerated
F . SGT Christophe Davis	Abuse: Sgt. Christopher Davis threatened § 87(2)(b) with the use of force.	F . Unsubstantiated
G . SGT Christophe Davis	Abuse: Sgt. Christopher Davis entered and searched § 87(2)(b) in the Bronx.	G . Unsubstantiated
H . LT Steven Mattioli	Abuse: Lt. Steven Mattioli entered and searched § 87(2)(b) in the Bronx.	H . Unsubstantiated
I . LT Steven Mattioli	Abuse: Allegation I: Lt. Steven Mattioli authorized the search of § 87(2)(b) Bedroom, in the Bronx.	I . Substantiated

Officer(s)	Allegation	Investigator Recommendation
J . SGT Christophe Davis	Abuse: Sgt. Christopher Davis searched § 87(2)(b)	J . Unsubstantiated

Case Summary

On August 20, 2015, around 11:00 p.m., § 87(2)(b) engaged in a domestic dispute with his daughter, § 87(2)(b) inside of his apartment located at § 87(2)(b) in the Bronx. § 87(2)(b)'s girlfriend, § 87(2)(b) was also inside of the apartment when this happened. § 87(2)(b) called 911, claimed that § 87(2)(b) had just assaulted her with a gun, and asked for officers to come to help her get her belongings and her son out of the apartment (Board Review 18, Board Review 19, Board Review 20). PO Mateusz Sajduk and PO Chad Poidomani, Sgt. Christopher Davis and Det. Brian Leo, all of the 48th Precinct, responded to the location first. Sgt. Davis entered the apartment with § 87(2)(b) and she was able to gather some of her belongings (**Allegation A**). When Sgt. Davis was leaving his apartment, he then allegedly told § 87(2)(b) "Shut the fuck up" and "I don't give a fuck" (**Allegation B**). All of the officers left the location. When PO Sajduk and PO Poidomani were sitting in their police car, they looked at their department issued cell phone and saw that § 87(2)(b) had an I-Card. PO Sajduk called Lt. Mattioli to inform them of the situation and Lt. Mattioli instructed them to go back to the location and arrest § 87(2)(b). Lt. Mattioli then called Sgt. Davis to go back to the scene to supervise the arrest and the scene until he got there. PO Sajduk and PO Poidomani returned to § 87(2)(b)'s apartment and placed him in handcuffs. An officer then allegedly put his foot in § 87(2)(b)'s apartment door which prevented § 87(2)(b) from closing the door (**Allegations G and H**). § 87(2)(b) did not want to leave the location until the door of his apartment was shut. Sgt. Davis allegedly said "Get this ass out of here" (**within Allegation B**). § 87(2)(b) began resisting Sgt. Davis, Det. Leo and PO Poidomani, who were trying to take him out of the building, and they used force to overcome his resistance (**Allegations C, D and E**). During this, Sgt. Davis allegedly threatened to pepper spray § 87(2)(b) (**Allegation F**). § 87(2)(b) was removed from the location and transported to the 48th Precinct stationhouse. Lt. Steven Mattioli, PO Vincent Figueroa and Lt. Edward Taveras arrived at the location while § 87(2)(b) was being transported to the 48th Precinct stationhouse. Sgt. Davis and other officers entered the apartment a second time to search the apartment for the gun (**within Allegations G and H**). While inside of the apartment, PO Figueroa searched under § 87(2)(b)'s mattress and recovered a large quantity of marijuana (**Allegation I**). Sgt. Davis recovered a wad of cash that was duct taped together from § 87(2)(b)'s bag when she showed him the contents of her bag (**Allegation J**). A domestic incident report was filled out for this incident (Board Review 11). § 87(2)(b) was also arrested as a result of this incident.

There is no video footage for this incident.

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation.
- As of November 24, 2015, § 87(2)(b) has not filed a Notice of Claim with the NYC Comptroller's Office (Board Review 29).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed three prior CCRB complaints; § 87(2)(b)
- This is § 87(2)(b)'s first CCRB complaint (Board Review 24).
- Sgt. Davis has been a member of the service for 10 years; he had had a total of four prior complaints, none of which have been substantiated.
- Lt. Steven Mattioli has been a member of the service for 24 years; he has had a total of one prior complaint with no allegations substantiated against him.
- Det. Leo has been a member of the service for 17 years; he has had a total of seven prior complaints, none of which have been substantiated.
- PO Poidomani has been a member of the service for seven years; he has had a total of one prior complaint which was closed as complaint withdrawn.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
-

Allegation A – Abuse of Authority: Sgt. Christopher Davis entered and searched § 87(2)(b) in the Bronx.

It is undisputed that § 87(2)(b) entered § 87(2)(b) with Sgt. Davis and that Sgt. Davis followed her around the apartment while she searched for the gun. This is based on statements made by § 87(2)(b) indicating that the officers entered the apartment so that she could gather and remove her belongings. At this time, § 87(2)(b) was physically present on the scene; § 87(2)(g)

Sgt. Davis stated that when he got to the apartment, he knocked on the door and spoke to § 87(2)(b) in the hallway. § 87(2)(b) then told him, “Get her fucking shit out of here” regarding § 87(2)(b)'s things. When Sgt. Davis told § 87(2)(b) that § 87(2)(b) wanted to show him something in the apartment, Sgt. Davis indicated that § 87(2)(b) told him, “Look. I don’t care. Go ahead” and never objected to the entry or search at the time. Sgt. Davis then indicated that he told § 87(2)(b) to show him where the gun was and he followed her around the apartment while she gathered her things and looked for the phone (Board Review12).

§ 87(2)(g)

§ 87(2)(b) alleged that he exited his apartment and gave the officers his hands when they told him that he was under arrest. Then when an officer allegedly put his foot in the doorway of his apartment, § 87(2)(b) began yelling and the officers decided to take him out of the building. § 87(2)(b) was saying that he refused to leave the building until his door was closed. § 87(2)(b) denied resisting the officers by moving his body. Sgt. Davis then lifted § 87(2)(b)'s arms upwards, while he was rear-cuffed, caused § 87(2)(b)'s body to go to the ground with his face first. § 87(2)(b) sustained a lump and a scrape on his face from this. § 87(2)(b) was then rolled into the wall and picked up by Sgt. Davis, Det. Leo and PO Poidomani. Officers were using their hands to handle § 87(2)(b) and at one point when he was on the floor, Sgt. Davis took out his pepper spray and said, "Keep it up. I'll mace you." In the process of picking § 87(2)(b) up from the floor, § 87(2)(b)'s knee, head, chest, stomach and back were hitting the floor and the wall but § 87(2)(b) was not resisting the officers. When the officers were walking down the stairs, § 87(2)(b) was stumbling and being pushed by the officers. When he got outside and was going to be placed in the police car, § 87(2)(b) alleged that the officers lifted his body horizontally and threw him in the car horizontally, causing § 87(2)(b)'s head to hit the inside of the door on the opposite side (Board Review 1). § 87(2)(b) sustained scratches on his arms, knee, shoulder and chest (Board Review 2, Board Review 3, Board Review 4, Board Review 5, Board Review 6, Board Review 7, Board Review 8). § 87(2)(b) the neighbor, refuted § 87(2)(b)'s contention that he was not resisting the officers when he said that § 87(2)(b) got hyper and that the situation escalated causing officers to begin to wrestle with § 87(2)(b) (Board Review 10). § 87(2)(b) corroborated § 87(2)(b)'s contention that § 87(2)(b) was hyper and that both she and the officers were telling him to calm down; she refuted § 87(2)(b)'s contention that he was stumbling down the stairs and stated that he was carried down the stairs by the officers (Board Review 9).

§ 87(2)(b) stated that when an officer put his foot in § 87(2)(b)'s door § 87(2)(b) got hyper and the situation escalated. He stated that three or four officers began to wrestle with § 87(2)(b) who was in handcuffs and that they lifted his arms up causing him to go onto the floor. § 87(2)(b) stated that when he was being taken down the stairs, § 87(2)(b)'s face banged on the wall and banister (Board Review 10). § 87(2)(b) stated that § 87(2)(b) was screaming at her to close the door and was being told to calm down by both § 87(2)(b) and the officers. § 87(2)(b) was then put onto the floor by the officers and then carried down the steps by them; two officers carried him from his shoulder and one officer carried him by his feet down the stairs (Board Review 9).

All of the officers present stated that § 87(2)(b) was physically resistant to walking with the officers out of the building by either moving his body in the opposite direction of the officers, kicking his legs, stiffening his body. All of the officers denied that officers brought § 87(2)(b) to the ground and denied that an officer lifted § 87(2)(b)'s arms while in handcuffs causing his head to hit the ground. They also denied that § 87(2)(b) was intentionally thrown into the walls by the officers. The officers stated that they used their hands to grab § 87(2)(b) in order to overcome his resistance. All of the officers denied that any officer took their pepper spray out, pointed it at § 87(2)(b) and said, "Keep it up. I'll mace you." All officers stated that § 87(2)(b) refused to walk down the stairs with the officers; Det. Leo stated that officers grabbed § 87(2)(b)'s arms and pulled him forward down the stairs, he was not carried; PO Poidomani stated that § 87(2)(b) was picked up by the officers and carried down the steps horizontally; Sgt. Davis stated that the officers grabbed one of § 87(2)(b)'s arms and carried him forward down the stairs. Det. Leo and Sgt. Davis were the only officers around when § 87(2)(b) was put into the car and stated that § 87(2)(b) refused to get into the car. Det. Leo stated that § 87(2)(b)'s shoulders were pushed down

During a police incident, an officer must use the minimum necessary force to overcome resistance. Patrol Guide Procedure 203-11 (Board Review 25).

Allegation G – Abuse of Authority: Sgt. Christopher Davis entered § 87(2)(b)
in the Bronx.

Allegation H- Abuse of Authority: Lt. Steven Mattioli entered and searched § 87(2)(b)
in the Bronx.

All parties agree that Sgt. Davis and other officers, including Lt. Mattioli, PO Sajduk, PO Figueroa, Det. Leo, PO Poidomani, and Lt. Taveras, entered § 87(2)(b) a second time and conducted a search of the apartment after § 87(2)(b) was arrested and removed from the scene. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) stated that she did not provide consent for the officers to search the apartment and that all she wanted to do was gather her belongings in the apartment when the officers took it upon themselves to search the apartment (Board Review 17). § 87(2)(g) § 87(2)(g) stated that the officers entered the apartment like they were on § 87(2)(g) § 87(2)(g)'s side and that § 87(2)(b) was speaking to the officers and answering their questions as the officers were searching the apartment (Board Review 09). Lt. Mattioli stated that when he arrived at the location, § 87(2)(b) gave the officers verbal consent to search the apartment (Board Review 13). Lt. Taveras also stated that § 87(2)(b) gave one of the officers' verbal consent to search the apartment (Board Review 31). Sgt. Davis stated that the officers had implied consent to search the apartment because § 87(2)(b) was present, there was property that she wanted to retrieve inside of the apartment and because she was the victim of a crime involving a weapon in the apartment and believed the weapon was in the apartment and was searching for the weapon herself (Board Review 12). PO Poidomani stated that § 87(2)(b) § 87(2)(b) had been called to return to the scene so that she could gather additional belongings and be re-interviewed. When they interviewed her, § 87(2)(b) informed them about the gun that had been displayed to her. PO Poidomani believed indicated that he did not ask § 87(2)(b)

§ 87(2)(b) for consent to search, but believed that PO Sadjduk had and that she had provided him with consent.

In Georgia v. Randolph, 547 U.S.103 (2006), the court held that the police could not search where one resident consents but a physically present co-occupant refuses or objects (Board Review 32). Fernandez v. California, 134 S. Ct. 1126 (2014), limited Georgia v. Randolph by saying that consent by a single occupant to enter and search is sufficient when a non-consenting occupant has been removed from the premises for reasons that are objectively reasonable (Board Review 33).

§ 87(2)(g)

According to § 87(2)(b) the officers came back to his apartment, told him about an i-card, and asked him to step out of the apartment, and that § 87(2)(b) complied and was placed in handcuffs (Board Review 01). § 87(2)(b) corroborated this. Both § 87(2)(b) and § 87(2)(b) stated that an officer put his foot in the doorway and that § 87(2)(b) told § 87(2)(b) to close the door to prevent the officer's entry, but the officer's foot prevented her from doing so.

PO Sajduk and PO Poidomani stated that they went back to § 87(2)(b)'s apartment to arrest him after discovering he had an active i-card. PO Sajduk stated that he discovered two active i-cards for § 87(2)(b) one for § 87(2)(b) and one for § 87(2)(b) (Board Review 14). PO Poidomani stated that the i-card was for § 87(2)(b) out of the 46th Precinct (Board Review 15). The officers contacted Lt. Mattioli about this to tell him that they were going to arrest § 87(2)(b) because he was wanted for a serious crime. Lt. Mattioli indicated that he had been told about § 87(2)(b) having a warrant and an active i-card for a homicide that occurred in the 46th Precinct.

Sgt. Davis stated that when § 87(2)(b) arrived at the building, § 87(2)(b) was still present at the scene but in police custody. According to Sgt. Davis, § 87(2)(b) began screaming that he was "not allowing this" and that he did not want § 87(2)(b) taking any electronics out of the apartment. He also stated that he did not want § 87(2)(b) taking anything out of the apartment and did not want her inside of the apartment when he was not there. § 87(2)(b) was eventually removed from the scene because he was kicking and screaming and acting in a way that proved to be "too out of control" to allow him to stay on the scene (Board Review 12).

PO Sajduk, the arresting officer, stated that at the time, § 87(2)(b) was arrested for the i-card and was not yet arrested for the assault on § 87(2)(b) because § 87(2)(b) had not yet been interviewed. The investigation obtained an active i-card for § 87(2)(b) that was for § 87(2)(b) in the 46th Precinct however § 87(2)(b) was being sought as "suspect only – no pc [probable cause] to arrest" (Board Review 34). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation G and Allegation H** be closed as **unsubstantiated**.

Allegation I: Lt. Steven Mattioli authorized the search of § 87(2)(b) Bedroom, in the Bronx.

It is undisputed that the officers entered § 87(2)(b)'s apartment to look for the firearm § 87(2)(b) had previously been assaulted with. It is also undisputed that PO Figueroa searched § 87(2)(b)'s bedroom, and that under § 87(2)(b)'s bed PO Figueroa found a large quantity of marijuana. Lt. Mattioli was PO Figueroa's direct supervisor that day, arrived at the scene with PO Figueroa, and was aware of PO Figueroa searching § 87(2)(b)'s bedroom in addition to all of the circumstances going on inside of the apartment since he was walking around the apartment supervising the search. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) Lt. Mattioli stated that § 87(2)(b) gave the officers verbal consent to enter and search the apartment and that once she gave the verbal consent, the officers searched anywhere they believed a firearm could have been in the apartment, including the areas § 87(2)(b) told them she believed a gun to be (Board Review 13). Lt. Taveras stated that § 87(2)(b) gave an officer verbal consent to search the apartment and that once § 87(2)(b) gave an officer consent, the officers were authorized to search the entire apartment (Board Review 31).

PO Figueroa stated that he was instructed by one of his supervisors to go into the apartment and look for the gun. PO Figueroa was not specifically directed where to go inside of the apartment but chose to go to § 87(2)(b)'s bedroom because no other officers were there yet. Although PO Figueroa stated that he was not instructed to look under the bed, PO Figueroa chose to look under § 87(2)(b)'s mattress because from his training and experience people keep things under their beds. Under § 87(2)(b)'s mattress, PO Figueroa recovered a large quantity of marijuana (Board Review 35).

Courts have held that unless it is a parent allowing a search of a child's bedroom, someone who lives jointly in an apartment with a second party cannot consent to a search of a room exclusively controlled by the second party. People v. Russo, 201 A.D.2d 940 (4th Dept. 1994), People v. Petrie, 89 A.D.2d 910 (2nd Dept. 1982) (Board Review 36, Board Review 37).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation I** be closed as **substantiated**.

Allegation J – Abuse of Authority: Sgt. Christopher Davis searched § 87(2)(b)

It is undisputed that § 87(2)(b) opened her bag and showed Sgt. Davis the contents of the bag which is when he reached into the bag and took a duct taped brick of money from the bag. § 87(2)(g)

§ 87(2)(b) stated that Sgt. Davis told her that he needed to search her bag since § 87(2)(b) said that § 87(2)(b) might have some of his belongings but that she did not live at the location. § 87(2)(b) opened her bag and moved items inside of her bag around. Sgt. Davis then placed his hands into her bag and took the money that she had in her bag out of the bag and walked over to Lt. Mattioli with the money (Board Review 9).

Sgt. Davis stated that he asked § 87(2)(b) if she had anything of § 87(2)(b)'s in her bag and if she minded if he looked. Sgt. Davis asked this question because § 87(2)(b) was concerned about his electronics being removed from the location because he was personally concerned that the gun they were looking for was in § 87(2)(b)'s bag. § 87(2)(b) opened her bag and showed Sgt. Davis the contents of her bag. Sgt. Davis saw that there was something duct taped at the bottom. Sgt. Davis asked § 87(2)(b) what was duct taped at the bottom of her bag and § 87(2)(b) told him that it was § 87(2)(b)'s money. Sgt. Davis informed § 87(2)(b) that § 87(2)(b) had said no one could leave the apartment with any of his things and that she was not allowed to leave with § 87(2)(b)'s money. Sgt. Davis then took the duct taped item out of § 87(2)(b)'s bag. He asked § 87(2)(b) why she had his money and why she had the money duct taped the way she did. § 87(2)(b) began to change her story and then said that the money was her money and that she had received it from Geico. Sgt. Davis told § 87(2)(b) that because she originally told him that the money was § 87(2)(b)'s money, he needed to secure the money. Sgt. Davis handed the money to Lt. Mattioli after he recovered it. He later called Asset Forfeiture and they made the determination that the money should be vouchered as forfeiture due to fact that the duct taped money was a large sum of cash in small denominations and because a large quantity of marijuana was found in the apartment (Board Review 12).

None of the other officers that were interviewed heard Sgt. Davis's conversation with § 87(2)(b) but they were all later informed that Sgt. Davis had recovered money from § 87(2)(b) (Board Review 13, Board Review 14, Board Review 15, Board Review 16).

§ 87(2)(g)

§ 87(2)(g)

. Therefore, it is recommended that **Allegation J** be closed as **unsubstantiated**.

Squad: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date